

9.	30-2025-01511451 Foote vs. Durham School Services, L.P.	1. Case Management Conference 2. Motion for Leave to Intervene Western Orange County Self-Funded Workers' Compensation Agency moves for an order granting leave of Court to file a Complaint in Intervention. Unopposed Motion is granted. Civ Code§387(a); Ca Lab Code§3852, 3853. Complaint in Intervention to be separately filed and served. Moving Party to give notice.
11.	30-2024-01371125 Bicknell vs. Hill Commercial Investments, Inc	1. Motion for Terminating Sanctions Defendant Hill Commercial Investments, Inc. ("Defendant") moves for terminating sanctions or, in the alternative for monetary sanctions against Plaintiffs' attorney, Steven Tamer, together with an order compelling full compliance with all prior Court orders. CCP section 2023.030 outlines the various sanctions that may be imposed "against anyone engaging in conduct that is a misuse of the discovery process," including: monetary sanctions, issue sanctions, evidence sanctions, a terminating sanction, and a contempt sanction. These sanctions may be imposed by the court, "after notice to any affected party, person, or attorney, and after opportunity for hearing." (Code Civ. Proc., § 2023.030.) Among other acts, disobeying "a court order to provide discovery" and "failing to respond or to submit to an authorized method of discovery," are misuses of the discovery process and conduct that is subject to sanctions. (Code Civ. Proc. § 2023.010, subd. (d), (g).) "Once a party or witness has been <i>ordered</i> to attend a deposition, or to answer discovery, or to produce documents, more severe sanctions are available for continued refusal to make discovery." (Cal. Prac. Guide Civ. Pro. Before Trial at ¶ 8:2145 [emphasis in original].) Many courts have found that terminating sanctions should be imposed only if the court has found a willful failure to comply. (See <i>Valencia v. Mendoza</i> (2024) 103 Cal.App.5th 427, 447; <i>R.S. Creative, Inc. v. Creative Cotton, Ltd.</i> (1999) 75 Cal.App.4th 486, 496.) The trial court has "broad discretion in selecting the appropriate penalty," and its determination should be upheld "absent an abuse of discretion." (<i>Lopez v. Watchtower Bible & Tract Society of New York, Inc.</i> (2016) 246 Cal.App.4th 566, 604.) Nevertheless, terminating sanctions "are to be used sparingly, only when the trial court concludes that lesser sanctions would not bring about the compliance of the offending party." (<i>R.S. Creative, Inc. v. Creative Cotton, Ltd.</i> (1999) 75 Cal.App.4th 486, 496.) The burden of showing sanctions are not justified (i.e., that the responding party did not willfully fail to perform) lies with the responding party. (See <i>Corns v. Miller</i> (1986) 181 Cal.App.3d 195, 201.) Here, Plaintiffs Darwin Z. Bicknell and Lissa M. Bareno were ordered on April 16, 2026 to appear for depositions, produce all documents described in the deposition notices (unless a privilege applies), and to, jointly and severally with their attorney of record, pay a monetary sanction of \$800 within 30 days to Defendant's counsel. (ROA 273.) On May 14, 2026, Plaintiffs were ordered to serve responses to Form Interrogatories, Special Interrogatories, and Requests for Production, without objections, within 45 days. They were also